

SENATE No. 515

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act reforming campaign finance laws.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 515

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 515) of Barry R. Finegold for legislation relative to campaign finance reform. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 418 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act reforming campaign finance laws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 50 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the definition of “Political committee” and
3 inserting in place thereof the following definition:-

4 "Political committee" shall apply only to a committee elected as provided in chapter f52,
5 except that in chapter 55, “political committee” shall also apply to any committee, association,
6 organization or other group of persons, including a national, regional, state, county or municipal
7 committee, which receives contributions or makes expenditures for the purpose of influencing
8 the nomination or election of a candidate, or candidates, or of presidential and vice presidential
9 electors or for the purpose of opposing or promoting a charter change, referendum question,
10 constitutional amendment or other question submitted to the voters.

SECTION 2. Section 1 of chapter 55 of the General Laws, as amended by section 181 of chapter 238 of the Acts of 2024, is hereby further amended in the definition of “Contribution” by inserting at the end thereof the following:-

; provided, however, that “contribution” shall not include any payments in the aggregate of less than \$7,500 per calendar year made by individuals for food, beverages, or goods sold by a political party committee organized pursuant to section or 3 of chapter 52 for a nominal price per item at events such as bake sales, farmer’s markets or community festivals, even if the purchase price exceeds the cost of the goods sold.

SECTION 3. Said section 1 of said chapter 55, as so appearing, is hereby further amended by inserting after the definition of “independent expenditure” the following definition:-

“In-kind contribution”, anything of value that is provided to a committee or candidate in a non-monetary form, including, but not limited to: (i) the value of goods or services provided free of charge; (ii) the difference between the cost charged and the usual market value charged; or (iii) the amount paid by a person or entity on behalf of the committee or candidate.

SECTION 4. Section 2 of said chapter 55, as appearing in the 2022 Official Edition, is hereby amended in paragraph (1) by striking the words “fifty dollars” each time they appear and inserting in place thereof the following:- \$100.

SECTION 5. Said section 2 of said chapter 55, as so appearing, is hereby further amended in paragraph (3) by striking the words “fifty dollars” and inserting in place thereof the following:- \$100.

SECTION 6. Section 3 of said chapter 55, as so appearing, is hereby amended in the eighth paragraph by striking out the words “The name of a candidate who is required to file campaign finance reports with the director, and who fails to file any statement or report after the initiation of civil proceedings under this section to compel the filing, shall not be printed on any municipal preliminary, state primary or general or special election ballot unless the statement or report is timely filed pursuant to chapter 53 or any charter or special law establishing the filing deadline.” and inserting in place thereof the following:-

The name of a candidate who is required to file campaign finance reports with the director, and who fails to file any statement or report after the initiation of civil proceedings under this section to compel the filing, shall not be printed on any municipal preliminary, state primary or general or special election ballot for a period of 10 years from the due date of the statement or report not filed or unless the statement or report is timely filed pursuant to chapter 53 or any charter or special law establishing the filing deadline, whichever comes first.

SECTION 7. Said section 3 of said chapter 55, as so appearing, is hereby further amended in the eighth paragraph by striking out the words “Any candidate who is disqualified from appearing on any municipal preliminary, state primary or general or special election ballot as set forth above shall be ineligible to be nominated or elected as a write-in or sticker candidate unless the candidate shall have filed the statements or reports which are the subject of the civil litigation by the date of the municipal preliminary, state primary or general or special election in which the candidate is seeking nomination or election.” and inserting in place thereof the followign:-

Any candidate who is disqualified from appearing on any municipal preliminary, state primary or general or special election ballot as set forth above shall be ineligible to be nominated or elected as a write-in or sticker candidate for a period of 10 years from the due date of the statement or report not filed or unless the candidate shall have filed the statements or reports which are the subject of the civil litigation by the date of the municipal preliminary, state primary or general or special election in which the candidate is seeking nomination or election, whichever comes first.

SECTION 8. Said section 3 of said chapter 55, as so appearing, is hereby further amended in the ninth paragraph by inserting after the words “contributions and expenditures.” the following sentence:- : -

Any records or documents received or reviewed by the director as part of an audit or investigation shall not be a public record for the purposes of chapter 66 while in the custody and possession of the agency.

SECTION 9. Said section 3 of said chapter 55, as so appearing, is hereby further amended in the eleventh paragraph by striking out the first sentence inserting in place thereof the following sentence:-

The director shall inform any person or committee under investigation by said director by certified mail, return receipt requested, by personal delivery, by leaving a copy of the notice at the person's last and usual place of residence, by delivering a copy of the notice to an attorney who has appeared on behalf of the alleged violator or by service which may be made by a deputy sheriff or constable either by personal delivery or leaving at the person's last and usual place of

residence of the director's intention to present to the attorney general evidence of any alleged violation of this chapter.

SECTION 10. Said section 3 of said chapter 55, as so appearing, is hereby further amended by adding the following subsection delineations:-

(i) at the beginning of the first paragraph: (a);

(ii) at the beginning of the sixth paragraph: (b);

(iii) at the beginning of the twelfth paragraph: (c);

(iv) at the beginning of the thirteenth paragraph: (d); and (v) at the beginning of the fourteenth paragraph: (e).

SECTION 11. Said section 3 of said chapter 55, as so appearing, is hereby further amended by adding the following new subsection:-

(f) The director may resolve any matter concerning violation of this chapter through the following disposition method:

(1) If the director determines, after notice and opportunity for hearing, that any candidate, committee or other person or entity has failed to file a statement or report as required by law, or if it appears to the director that any such statement or report filed with the director does not conform to law, the director may order such candidate, committee or other person or entity to file such statement or report or to amend such statement or report so that it conforms to the law, and may take such other action, including the imposition of an administrative fine, an order to disgorge a contribution received that does not conform to the law or a contribution received in a manner that does not conform to the law or any other such relief as in the director's judgment

may be necessary to carry out the purposes of this chapter. Any administrative fine imposed pursuant to this chapter shall be consistent with the penalties set forth in the applicable section or sections of chapter 5, and any fine collected shall be deposited in the Local Election Early Voting Fund established by section 42 of chapter 10.

(2) No order under this section shall be entered without prior notice of and opportunity for hearing. Notice shall conform to subsection (b) of section 3.

(3) Any person aggrieved by a final decision of or order issued by the director in an adjudicatory proceeding hereunder may obtain judicial review pursuant to section 14 of chapter 30A.

SECTION 12. Section 5 of said chapter 55, as so appearing, is hereby amended by striking out, in line 10, the word “address” and inserting in place thereof the following:-
business address.

SECTION 13. Said section 5 of said chapter 55, as so appearing, is hereby further amended by striking out, in lines 17 and 18, the phrase “the name and residential address” and inserting in place thereof the following:-

the name and business or residential address.

SECTION 14. Said section 5 of said chapter 55, as so appearing, is hereby further amended by striking out, in line 19, the phrase “residential address” and inserting in place thereof the following:-

business or residential address.

114 SECTION 15. Said section 5 of said chapter 55, as so appearing, is hereby further
115 amended by striking out, in line 21, the phrase “name and address” and inserting in place thereof
116 the following:-

117 name and business or residential address.

118 SECTION 16. Said section 5 of said chapter 55, as so appearing, is hereby further
119 amended by striking out, in line 62, the word “addresses” and inserting in place thereof the
120 following:-

121 business or residential addresses.

122 SECTION 17. Section 6 of said chapter 55, as amended by section 182 of chapter 238 of
123 the Acts of 2024, is hereby further amended by striking out the first paragraph and inserting in
124 place thereof the following paragraph:-

125 A political committee, duly organized, may receive, pay or expend money or other things
126 of value for the enhancement of the political future of the candidate or the principle for which the
127 committee was organized; provided, however, that the expenditure shall not be primarily for the
128 candidate’s or any other person’s personal use. The director shall establish reasonable rules and
129 regulations concerning the expenditures.

130 SECTION 18. Said section 6 of said chapter 55, as so appearing, is hereby further
131 amended by striking from the second paragraph the words “\$100 in any 1 calendar year” and
132 inserting in place thereof the following:- \$500 in any 1 calendary year; provided, however, that
133 such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed
134 \$1,000 in any such cycle.

SECTION 19. Said section 6 of said chapter 55, as so appearing, is hereby further amended by striking the fourth paragraph in its entirety and inserting in place thereof the following paragraph:-

Except as otherwise provided in section 6B, a political committee not organized on behalf of an individual candidate may contribute to another political committee not organized on behalf of an individual candidate; provided, however, that the aggregate of contributions to elected political committees or non-elected political committees organized on behalf of a political party pursuant to section 1 of chapter 52 shall not exceed in any 1 calendar year the sum of \$15,000; provided further, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$30,000 in any such cycle; provided further, that the aggregate of such campaign contributions to any one such political committee established pursuant to section 2 or 3 of chapter 52 shall not exceed in any 1 calendar year the sum of \$1,500; provided further, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$3,000 in any such cycle; provided further, that the aggregate of contributions to a political committee other than a political party committee shall not exceed in any 1 calendar year the sum of \$1,500; and provided further, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$3,000 in any such cycle. A political committee not organized on behalf of an individual candidate, other than a political party committee, may contribute to the campaign fund of a candidate; provided, however, that the aggregate of all such contributions for the benefit of any 1 candidate and such candidate's committee shall not exceed the sum of \$1,500 in any 1 calendar year; and provided further, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$3,000 in any such cycle. The political committee of a political party may contribute to the campaign fund of a candidate;

provided, however, that the aggregate of all contributions of money for the benefit of any 1 candidate and the non-elected political committee organized on such candidate's behalf shall not exceed in any 1 calendar year the sum of \$7,500 in the case of the state committee and the sum of \$1,500 in the case of each town or ward committee; a provided further, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$15,000 in any such cycle in the case of the state committee and the sum of \$3,000 in the case of each town or ward committee. For the purposes of the limitations established by this section, all campaign contributions made by political committees established, financed, maintained or controlled by any person, including any parent committee of a subsidiary committee or any person other than a natural person, shall be considered to have been made by a single political committee. Nothing in this section shall be construed to permit contributions to political committees which are otherwise prohibited by this chapter.

SECTION 20. Section 6A of said chapter 55 is hereby repealed.

SECTION 21. Said chapter 55 is hereby amended by striking section 7 in its entirety and inserting in its place the following section:-

Section 7. Receipts, disbursements and contributions regulated; limitations; penalties

No person or combination of persons, including a corporation formed under the provisions of chapter 180, shall in connection with any nomination or election receive money or its equivalent, expend or disburse or promise to expend or disburse the same, except as authorized by this chapter. A political committee or a person acting under the authority or on behalf of such a committee may receive money or its equivalent, or expend or disburse or promise to expend or disburse the same for the purpose of aiding or promoting the success or

defeat of a candidate at a primary or election or a political party or principle in public election or favoring or opposing the adoption or rejection of a question submitted to the voters and for other purposes expressly authorized by this chapter subject, however, to the provisions thereof. A candidate may make expenditures without limitation for the purposes of the candidate's own campaign and may make campaign contributions without limitation for the benefit of the non-elected political committee organized on the candidate's behalf.

No candidate or candidate's committee shall receive a transfer of funds or assets from any federal political committee.

Violation of any provision of this section or section 7A shall be punished by imprisonment for not more than 6 months or by a fine of not more than \$500.

SECTION 22. Subsection (a) of section 7A of said chapter 55, as appearing in the 2022 Official Edition, is hereby amended by striking paragraph (1) and inserting in place thereof the following paragraph:-

(1) An individual may make campaign contributions to candidates or candidates' committees. The aggregate of all such contributions for the benefit of any 1 candidate and that candidate's committee shall not exceed the sum of \$1,500 in a calendar year; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$3,000 in any such cycle; provided further, that the aggregate of contributions by an individual for the benefit of any 1 candidate and the candidate's committee seeking election to the office of state senator or state representative in a state election who previously, in the same calendar year, sought election to the office of state senator or state representative in a special election, shall not exceed the sum of \$1,500 during the period beginning on the first day of

January and ending on the day of the special election and an additional \$1,500 during the period that begins on the day after the special election and ends on the last day of December following the special election.

SECTION 23. Said subsection (a) of said section 7A of said chapter 55, as so appearing, is hereby further amended by striking out paragraph (2) in its entirety and inserting in place thereof the following: -

An individual may in addition make campaign contributions for the benefit of elected political committees or non-elected political committees organized on behalf of a political party; provided, however, that the aggregate of such campaign contributions to any 1 such political committee established pursuant to section 1 of chapter 52 shall not exceed in any 1 calendar year the sum of \$15,000; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$30,000 in any such cycle; provided further, that the aggregate of such campaign contributions to any one such political committee established pursuant to section 2 or 3 of said chapter 52 shall not exceed in any one calendar year the sum of \$1,500; and provided further, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$3,000 in any such cycle

SECTION 24. Said subsection (a) of said section 7A of said chapter 55, as so appearing, is hereby further amended in paragraph (3) by striking out the words “five hundred dollars” and inserting in place thereof the following: - \$1,500; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$3,000 in any such cycle.

SECTION 25. Said section 7A of said chapter 55, as so appearing, is hereby amended by striking out subsection (b) and inserting in place thereof the following subsection:-

(b) Notwithstanding any other provision of this chapter, the aggregate of all contributions by a legislative or executive agent for the benefit of any 1 candidate and such candidate's committee shall not exceed the sum of \$500 in any 1 calendar year; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$1,000 in any such cycle. Notwithstanding any other provision of this chapter, the aggregate of all contributions by a legislative or executive agent to any other political committee, other than a ballot question committee, shall not exceed the sum of \$500 in any 1 calendar year; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$1,000 in any such cycle.

SECTION 26. Said section 7A of said chapter 55, as so appearing, is hereby further amended by striking out subsection (c) and inserting in place thereof the following subsection:-

(c) The aggregate of all contributions by a person who holds a license issued by the Massachusetts gaming commission, who was required to apply for that license under section 14 of chapter 23K, for the benefit of any 1 candidate and such candidate's committee shall not exceed \$500 in a calendar year; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$1,000 in any such cycle. The aggregate of all contributions by a person who holds a license issued by the Massachusetts gaming commission, who was required to apply for that license under said section 14 of said chapter 23K, for the benefit of any other political committee, other than a ballot question committee,

shall not exceed \$500 in a calendar year; provided, however, that such expenditures may be aggregated by 2-year election cycle but shall not, in any case, exceed \$1,000 in any such cycle.

SECTION 27. Said chapter 55 is hereby amended by inserting after section 7A the following section:-

Section 7B. Using the federal consumer price index for the Boston statistical area, the director shall biennially index for inflation the contribution and aggregate amount limits referred to in sections 6 and 7A of this chapter. Not later than December 31 of each even numbered year beginning with 2026, the director shall calculate and publish such indexed limits, rounded up to the nearest \$50; provided, however, that the director shall use the unrounded limits when indexing the limits for inflation in the subsequent even numbered year.

SECTION 28. Section 8A of said chapter 55 is hereby repealed.

SECTION 29. Section 9 of said chapter 55, as appearing in the 2022 Official Edition, is hereby amended by striking from the title of the section the words “\$50 or”.

SECTION 30. Said section 9 of said chapter 55, as so appearing, is further hereby amended by striking from the first sentence the words “\$50 in cash or \$100 in money order or bank check” and inserting in place thereof the following:- \$100 in cash, money order or bank check.

SECTION 31. Said section 9 of said chapter 55, as so appearing, is hereby further amended in the sixth sentence by striking from out the figures “\$50” and inserting in place thereof the following:- \$100.

SECTION 32. Section 13 of said chapter 55, as so appearing, is hereby amended by striking out the first sentence in its entirety and inserting in place thereof the following 5 sentences:-

No person employed for compensation, other than an elected officer, by the commonwealth or any county, city or town shall directly or indirectly solicit or receive any gift, payment, contribution, assessment, subscription or promise of money or other thing of value for the political campaign purposes of any candidate for public office or of any political committee, or for any political purpose whatever. This prohibition shall not apply to any person when on an uncompensated leave of absence from such position or to a member of the National Guard when not on active duty. This section shall not prevent such persons from being members of political organizations or committees. A person so employed shall not serve as the treasurer of a political committee. The soliciting or receiving of any gift, payment, contribution, assessment, subscription or promise of money or other thing of value by a non-elected political committee organized to promote the candidacy for public office of a person so employed for compensation by the commonwealth or any county, city or town, shall not be deemed to be a direct or indirect solicitation or receipt of such contribution by such person; provided, however, that no such gift, payment, contribution, assessment, subscription or promise of money or other thing of value shall be solicited or received on behalf of such a person from any person or combination of persons if such person so employed knows or reasonably should know that the person or combination of persons has an interest in any particular matter in which the person so employed participates or has participated in the course of such employment or which is the subject of the person's official responsibility.

SECTION 33. Section 14 of said chapter 55, as so appearing, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

No person shall in any building or part thereof occupied for state, county or municipal purposes demand, solicit or receive any payment or gift of money or other thing of value for the purposes set forth in section 13; provided, however, that this section shall not apply to an individual, candidate, political committee or a person acting on behalf of such individual, candidate or political committee, that rents or leases a portion of a building occupied for state, county or municipal purposes, other than the state house or a city or town hall, for the purpose of holding a meeting, fundraiser or similar event on the same terms and conditions as offered to a member of the public; and provided further, that no government business shall be conducted in that portion of the building during the meeting, fundraiser or event.

SECTION 34. Section 18 of said chapter 55, as so appearing, is hereby amended by striking out the words "January 20" each time they appear and inserting in place thereof the words:- "January 31".

SECTION 35. Subsection (a) of said section 18 of said chapter 55, as so appearing, is hereby amended in paragraph (1) by striking out clause)(i) and inserting in place thereof the following clause:-

(i) the eighth day preceding a city or town preliminary or primary, including a caucus, the eighth day preceding a city or town election, and if a town election held on or after November 1 or city election, as a final report, January 20 in the following year complete as to December 31 of the prior year and all other town elections, as a final report, the thirtieth day following said election;

308 SECTION 36 Subsection (e) of said section 18 of said chapter 55, as so appearing, is
309 hereby amended in paragraph (2) by striking out the figure “\$50” each time it appears and
310 inserting in place thereof the following:- \$100.

311 SECTION 37: Said subsection (e) of said section 18 of said chapter 55, as so appearing,
312 is hereby further amended in paragraph (8) by striking out the figure “\$50” and inserting in place
313 thereof the following:- \$100.

314 SECTION 38: Subsection (f) of said section 18 of said chapter 55, as so appearing, is
315 hereby amended by striking out the figure “\$50” each time it appears and inserting in place
316 thereof the following:- \$100.

317 SECTION 39. Section 18A of said chapter 55, as so appearing, is hereby amended by
318 striking out the phrase “after the tenth day, but more than 24 hours before the date of any
319 election,” and inserting in place thereof the following:-

320 after the tenth day before the date of the election and up through the date of the election.

321 SECTION 40. Said section 18A of said chapter 55, as so appearing, is hereby amended
322 by striking out subsection (d) and inserting in place thereof the following:-

323 (d) For the purposes of this section, an "independent expenditure PAC" shall be a political
324 committee or other entity that receives contributions to make independent expenditures. An
325 independent expenditure PAC shall organize in accordance with section 5 and shall, if organized
326 with the director, appoint a depository bank in accordance with section 19. An independent
327 expenditure PAC that organizes and files reports with the director shall file reports in accordance
328 with the schedule set forth in paragraph (2) of subsection (b) of section 19. An independent

expenditure PAC that organizes and files reports with a city or town clerk shall file reports in accordance with the schedule set forth in paragraph (1) of subsection (a) of section 18.

In addition to any reports required by section 18 or 19 of this chapter, the independent expenditure PAC shall file reports as required by subsections (a) and (b) of this section. Such reports shall be filed with the director if the independent expenditure PAC is organized with the office of campaign and political finance, or with the city or town clerk if organized with the clerk. Reports filed pursuant to subsections (a) and (b) of this section shall disclose contributions received, expenditures made and liabilities incurred during the reporting period. The reporting period for the first report filed by an independent expenditure PAC pursuant to subsection (a) or (b) of this section shall commence on the day the independent expenditure PAC was organized and shall be complete through the date of the latest expenditure disclosed in the report. The reporting period for the next report shall commence on the date following the last date included in the previous report filed pursuant to subsections (a) or (b) of this section and shall be complete through the date of the latest expenditures disclosed in the report. An independent expenditure PAC shall also file a year-end report by January 31 of each year the independent expenditure PAC remains in existence and shall file a final report upon dissolution. The reporting period for the year-end report shall be cumulative for the calendar year, commencing on January 1 and ending on December 31 of each calendar year. The director shall adopt regulations regarding independent expenditure PACs.

SECTION 41. Subsection (d) of said section 18A of said chapter 55, as so appearing, is hereby amended by striking out the words “January 20” and inserting in place thereof the following:- “January 31”.

351 SECTION 42. Section 18B of said chapter 55 is hereby repealed..

352 SECTION 43. Section 18C of said chapter 55, as so appearing, is hereby amended by
353 striking paragraph (a) in its entirety and inserting in place thereof the following:-

354 (a) The director shall develop an electronic reporting system for the submission, retrieval,
355 storage and public disclosure of campaign finance reports and financial activity statements
356 required to be filed with the director. The director shall make all the data filed available on the
357 internet except for the building number and street name of any person or entity listed as having
358 made a political contribution to the candidate or political committee filing the report. The
359 address information suppressed shall remain available on the report maintained in the director's
360 office but shall not be available as a public record.

361 SECTION 44. Subsection (b) of said section 18C of said chapter 55, as so appearing, is
362 hereby amended by striking out clause (viii)..

363 SECTION 45. Section 18D of said chapter 55 is hereby repealed.

364 SECTION 46. Subsection (b) of section 18E of said chapter 55, as so appearing, is hereby
365 amended striking out the figure "\$50" and inserting in place thereof the following:- \$100.

366 SECTION 47. Subsection (a) of section 19 of said chapter 55, as so appearing, is hereby
367 amended in the first sentence by striking out the words "the treasurers of people's committees
368 and political action committees that file with the director other than independent expenditure
369 PACs" and inserting in place thereof the following:-

370 the treasurers of people's committees, political action committees and independent
371 expenditure PACs that file with the director.

SECTION 48. Said section 19 of said chapter 55, as so appearing, is hereby further amended by striking out the word “and” in line 47 and inserting after the word “report” in line 48 the following:-

; (iv) a list of all in-kind contributions of more than \$50 received as of the last day of the preceding month and since the last statement, including an alphabetical list of names and addresses of each person making such contribution, the date received, the type of in-kind contribution and the value of the in-kind contribution; and (v) a list of new liabilities incurred as of the last day of the preceding month, including the name and address of the person to whom the liability exists, together with a clear statement of purpose for which it was incurred.

SECTION 49. Section 19 of said chapter 55, as so appearing, is hereby further amended by striking out subsection (c) and inserting in place thereof the following subsection: -

(c) Except as otherwise provided in this section, all payments for campaign purposes made by or for the benefit of a candidate or by the treasurer of a political committee which are in excess of \$100 shall be made only from funds on deposit in the depository through checks drawn on the depository and indicating that the checks are drawn on the campaign account of the candidate or the political committee involved, or in another form as permitted by this section. All checks drawn on the campaign account shall be payable to the order of a named payee. The memo line of the check shall be used by the political committee issuing the check to indicate the specific purpose of the expenditure. A political action committee or political party committee making an expenditure to support or oppose a candidate shall identify the candidate on the check.

Notwithstanding the restrictions in the paragraph above, a committee may reimburse individuals, including the candidate or treasurer, in amounts greater than \$100; provided,

however, that the reimbursement amounts shall not be more than \$1,000; and provided further, that the committee complies with the following requirements: (i) reimbursements shall be made to individuals not later than thirty days after the date of the first reimbursed expenditure; (ii) reimbursement reports shall be filed within three days of the reimbursement check being issued to disclose underlying expenditures; (iii) no person who is authorized to make expenditures for a committee may write a check payable to themselves; (iv) detailed records including receipts for reimbursed expenditures shall be maintained; and (v) if a reimbursement is not made consistent with this paragraph the expenditure shall be deemed an in-kind contribution or loan by the individual and subject to all contribution restrictions.

A candidate or treasurer of a political committee required to designate a depository may make expenditures by wire transfer, electronic fund transfer or other electronic means, credit card or debit card; provided, however, that a candidate or treasurer making an expenditure shall ensure that the date, amount and specific purpose of the expenditure is disclosed in accordance with regulations established by the director; and provided further, that a candidate or a treasurer of a candidate's committee for nomination or election to the state senate or house of representatives shall provide such disclosures on the same schedule as set forth in paragraph (3) of subsection (b).

SECTION 50. Section 19 of said chapter 55, as so appearing, is hereby amended by striking out the phrase "January 20" wherever it may appear and inserting in place thereof the phrase "January 31".

414 SECTION 51. Section 19 of said chapter 55, as so appearing, is hereby amended by
415 striking the numbers “\$50” wherever they may appear and inserting in its place the following: -
416 \$100.

417 SECTION 52. Section 22 of chapter 55, as so appearing, is hereby amended by striking
418 out in the third paragraph the phrase “(4) the twentieth day of January” and inserting in its place
419 the phrase “January 31”.

420 SECTION 53. Section 22 of chapter 55, as so appearing, is hereby amended by striking
421 out in the fourth paragraph in its entirety and inserting in its place the following: -

422 If the question appears on ballots at a city or town election or appears on ballots for use in
423 a city or town at a state election, such report shall be filed with the city or town clerk as follows:

424 (1) The eighth day preceding a city or town election, and if a town election held on or after
425 November 1 or city election, as a final report, January 31 in the following year complete as to
426 December 31 of the prior year, and all other town elections, as a final report, the thirtieth day
427 following said election;

428 SECTION 54. Section 22 of chapter 55, as so appearing, is hereby amended by deleting
429 the third sentence from the fifth paragraph in its entirety.

430 SECTION 55. Said chapter 55, as so appearing, is hereby amended by inserting after
431 section 22A the following section: -

432 Section 22B: Persons or corporations making contributions or expenditures to influence
433 town warrant articles; filing reports with clerk; penalties.

(a) Terms used in this section shall be construed as follows unless a contrary intention clearly appears:-

“Article”, subjects to be acted upon at a town meeting as referenced in a warrant.

“Town Meeting”, an annual town meeting or special town meeting called pursuant to chapter 39, section 9.

“Warrant”, the call of a town meeting pursuant to chapter 39, section 10.

(b) Any person, corporation, association, organization or other group of persons, which has given, paid, or expended, or promised to give, pay or expend, any money or other thing of value of \$1,000 or more in the aggregate in order to influence or affect an article on a warrant or the vote on any article at a town meeting, shall file reports on a form as prescribed by the director. The form shall include the date each expenditure was made or liability incurred; the purpose of the expenditure or liability; the amount of the expenditure; the full name and address of the person to whom each expenditure was made or liability incurred; the full name and address of the person, corporation, association, organization or the members of other group of persons by whom such expenditure was made or liability incurred; and for each gift, payment or contribution received to make the expenditure or incur the liability (1) the date of receipt; (2) the amount; and (3) the full name and address from whom each gift, payment or contribution was received.

(c) Such reports shall be filed with the town clerk as follows: (i) on the fifth day of each month for any contributions received or expenditures made in the preceding month through the last day of the preceding month; (ii) on the fifth day preceding a town meeting complete as to the

455 seventh day preceding the town meeting; and (iii) as a final report, on the thirtieth day following
456 a town meeting.

457 (d) This section shall not prohibit any officer, employee or agent of the commonwealth or
458 its subdivisions from acting in their official capacity or private capacity relative to an article on a
459 warrant.

460 (e) Violation of any provision of this section shall be punished by imprisonment for not
461 more than one year, or by a fine of not more than \$1,000, or both.

462 SECTION 56. Section 25 of chapter 55, as so appearing, is hereby amended by striking
463 out the first paragraph and inserting in place thereof the following: -

464 The director shall retain all statements and reports filed with the office under the
465 provisions of this chapter by candidates and their committees until December 31st of the
466 fifteenth year following the date that the statement or report was filed.

467 SECTION 57. Section 42 of Chapter 10 of the General Laws, as so appearing in the 2020
468 Official Edition, is hereby amended by striking the section in its entirety and inserting in its place
469 the following: -

470 Section 42: Local Election Early Voting Fund

471 Section 42. There shall be established on the books of the commonwealth a separate fund
472 to be known as the Local Election Early Voting Fund, consisting of all revenues received under
473 section 6C of chapter 62, and all other monies credited or transferred to the fund from any other
474 fund or source pursuant to law.

The state treasurer shall deposit the fund in accordance with section 34 of chapter 29 in such manner as will secure the highest interest rate available consistent with safety of the fund.

The local election early voting fund shall be expended by the secretary of the commonwealth in the form of grants to local communities for payment of costs related to elections, including, but not limited to, election worker payroll, equipment, voter education, vote-by-mail, early voting, printing, and postage, incurred by the city or town for primary elections, preliminary elections, state elections, local elections, special primary elections, special preliminary elections, special state elections and special local elections.

The amount of each grant shall be calculated by dividing the total number of registered voters in the municipality as of the first day of February of each year by the total number of registered voters in the commonwealth as of the first day of February each year and then multiplying the total funds available in the Fund as of the first day of May each year by the resulting percentage, provided that no city or town shall receive more than three percent of the available funds. The funds may be used by the local election official in the municipality for the costs permitted herein without further appropriation.

The funds shall be disbursed by the thirty-first day of July each year to be expended during that fiscal year. Any funds received will be deducted from funds found by the State Auditor to be due pursuant to the community Local Mandate Law, G.L. c. 29, § 27C.

The secretary of the commonwealth shall promulgate regulations as necessary for the administration of the local election early voting fund.

SECTION 58. Sections 42A, 42B and 42C of said Chapter 10, as appearing, are hereby repealed.

SECTION 59. Section 6C of Chapter 62 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking the section in its entirety and inserting in its place the following: -

Section 6C: Massachusetts Local Election Early Voting Fund; voluntary contributions

Section 6C. Every individual who files a separate return may voluntarily contribute one dollar to be paid over to the Local Election Early Voting Fund, established by section forty-two of chapter ten. In the case of a joint return, each spouse may voluntarily contribute one dollar to said fund. A credit in the full amount of any contribution under this section shall be allowed against the tax imposed by this chapter; provided, that for any such return no such credit shall exceed the income tax liability for any taxable year.

A contribution made under this section may be made with respect to any taxable year at the time of filing the return of the tax imposed by this chapter for such taxable year; provided, however, that the commissioner shall prescribe the manner in which such contribution shall be made on the face of the return required by section five of chapter sixty-two C.

The provisions of this section shall apply only to residents required to file a return under this chapter.

For purposes of this section the words "income tax liability for any taxable year" shall mean the amount of tax imposed by this chapter reduced by sum of the credits allowed by clause (a) of section six.

SECTION 60. Chapter 55C, as appearing, is hereby repealed in its entirety.

517 SECTION 61. Any funds remaining in the State Election Campaign Fund established
518 pursuant to Section 42 of Chapter 10 on the effective date of this Act shall be deposited in the
519 Local Election Early Voting Fund.